

TENTATIVE RULING

Case: Neimeyer v. General Motors LLC
Case No. CV2026-1130

Hearing Date: June 17, 2026 **Department Fourteen** **9:00 a.m.**

Defendant General Motors LLC's demurrer to plaintiffs Amber Neimeyer and Casey Neimeyer's complaint as to the fourth cause of action for breach of the implied warranty of merchantability is **SUSTAINED WITHOUT LEAVE TO AMEND**. (Code Civ. Proc., § 430.10, subd. (e).)

Defendant has established that this cause of action is barred by the applicable statute of limitations. (Com. Code, § 2725; *Montoya v. Ford Motor Co.* (2020) 46 Cal.App.5th 493, 495; *Cardinal Health 301, Inc. v. Tyco Electronics Corp.* (2008) 169 Cal.App.4th 116, 134; Complaint, ¶ 6.)

Defendant's demurrer to plaintiffs' complaint as to the fifth cause of action for fraudulent inducement - concealment on the ground that is barred by the statute of limitations is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) Defendant has failed to establish, based on the allegations in plaintiffs' complaint, that this cause of action is barred by the applicable statute of limitations. (Code Civ. Proc., § 338, subd. (d); Complaint, ¶¶ 6 & 24-25.)

Defendant's demurrer to plaintiffs' complaint as to the fifth cause of action for fraudulent inducement - concealment on the ground that the complaint fails to allege facts sufficient to state a cause of action is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) Defendant has failed to establish that plaintiffs' complaint does not state facts sufficient for this cause of action. (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 40-41 [stating the elements for fraudulent concealment and when a duty disclose a material fact arises]; *Alfaro v. Community Housing Improvement System & Planning Assn., Inc.* (2009) 171 Cal.App.4th 1356, 1384-1385 [“How does one show ‘how’ and ‘by what means’ something didn't happen, or ‘when’ it never happened, or ‘where’ it never happened?”]; Complaint, ¶¶ 6, 11, & 46-75.)

Defendant's demurrer to plaintiffs' complaint as to the fifth cause of action for fraudulent inducement - concealment on the ground that it is barred by the economic loss rule is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) The economic loss rule does not bar a claim for fraudulent inducement that is independent of a defendant's alleged breach of contract. (See *Robinson Helicopter Co., Inc. v. Dana Corp.* (2004) 34 Cal.4th 979, 988.) As to the fifth cause of action, the complaint alleges conduct that occurred prior to the parties entering into a contractual relationship. (See *Dhital v. Nissan N. Am., Inc.* (2022) 84 Cal.App.5th 828, 840-841 & 843 [the economic loss rule does not apply to concealment-based claims for fraudulent inducement because “the duty that gives rise to tort liability is either completely independent of the contract or arises from conduct which is both intentional and intended to harm”]; Complaint, ¶¶ 6, 52-54, 58, & 66-67.)

Based on the foregoing, defendant must answer plaintiffs' complaint by no later than **June 29, 2026**. (See Cal. Rules of Court, rule 3.1320(j).)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by

counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Reed v. Phi Beta Sigma Fraternity, Inc.**
Case No. CV2025-3778

Hearing Date: **June 17, 2026** **Department Fourteen** **9:00 a.m.**

On the Court's own motion, defendant City of Davis's demurrer to plaintiffs Asia Danae Reed and Amaya Mireya Morales' complaint is **CONTINUED** to **August 13, 2026**, at 9:00 a.m. in Department Fourteen. As the parties were unable to meet and confer before defendant filed this demurrer, the Court continues the hearing to allow the parties an opportunity to do so. (See *Dumas v. Los Angeles County Bd. of Supervisors* (2020) 45 Cal.App.5th 348, 355, fn. 3 [stating that if "a court learns no meet and confer has taken place, or concludes further conferences between counsel would likely be productive, it retains discretion to order counsel to meaningfully discuss the pleadings"]; Code Civ. Proc., § 430.41; Graham decl., ¶¶ 2-4.)

By **July 17, 2026**, the parties are **DIRECTED** to meet and confer, in person, by telephone, or by video conference, regarding the issues raised in defendant's demurrer.

By **July 30, 2026**, defendant **SHALL** file and serve a declaration regarding the parties' meet and confer efforts and identify the remaining issues for the Court's determination. If there are no remaining issues, defendant is **DIRECTED** to request that the August 13, 2026, hearing be vacated.

By **August 6, 2026**, plaintiffs **SHALL** file and serve a responsive declaration, unless defendant requests that the hearing be vacated.

The Court notes that plaintiffs' deadline to file an opposition has passed. (Code Civ. Proc., § 1005, subd. (b).)